

10	Sun vs BNSF Railway Company 30-2020- 01170148-CU-PO- CJC	Defendant City of Anaheim’s Motion for Summary Judgment Defendant, City of Anaheim’s Motion for Summary Judgment is DENIED. Defendant failed to meet its initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) The City failed to meet its initial burden to show it did not own/control the subject fence. The City’s separate statement is devoid of any facts of ownership. Further, the City’s separate statement is devoid of any facts about the so-called “crosswalk to nowhere.” On this record, even if the City’s legal argument is correct, there are inadequate facts upon which to base a ruling as a matter of law. Plaintiffs to give notice.
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